

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X Index No.:

SEDINA SIMMONS,

SUMMONS

Plaintiff,

-against-

THE CITY OF NEW YORK, and POLICE OFFICER
MICHAEL DALIA, SHIELD NO. 2310,

Plaintiff designates New York
County as the place of trial.
The basis of the venue is locus
of occurrence.

Defendants.

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To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the state of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 28, 2021

FRIEDMAN, LEVY, GOLDFARB & GREEN, P.C.

Attorneys for Plaintiff
250 West 57th Street - Suite 1619
New York, New York 10107
(212) 307-5800

By: 
NICOLAS BAGLEY, ESQ.

Defendants' Addresses:

The City of New York
100 Church Street
New York, NY 10007

P.O. Michael Dalia, Shield No. 2310
25th Precinct
120 E119th Street
New York, NY 10035

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X Index No.:

SEDINA SIMMONS,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, and POLICE OFFICER
MICHAEL DALIA, SHIELD NO. 2310,

Defendants.

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Plaintiff, SEDINA SIMMONS, by her attorneys FRIEDMAN, LEVY, GOLDFARB &
GREEN, P.C. as for his Verified Complaint, alleges the following, upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, was
and still is a municipal corporation duly organized and existing under the laws of the State of New
York.

2. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, its
agents, servants and employees operate, maintained and controlled the Police Department of the
City of New York, including all Police Officers thereof.

3. At all times hereinafter mentioned, on September 19, 2019, Defendant POLICE
OFFICER MICHAEL DALIA, SHIELD NO. 2310, was employed by Defendant THE CITY OF
NEW YORK, as a police officer.

4. At all times hereinafter mentioned, Defendant POLICE OFFICER MICHAEL
DALIA, SHIELD NO. 2310, was acting within the scope of his employment as a police officer
with THE CITY OF NEW YORK.

5. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK has

established and maintains a Department of Police as a constituent department or agency of the defendant.

6. Defendant, THE CITY OF NEW YORK, is and was at all times relevant herein a Municipal entity created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant, THE CITY OF NEW YORK, assumes the risks incidental to the maintenance of a police force and the employment of POLICE OFFICER MICHAEL DALIA, SHIELD NO. 2310 as said risk attaches to the public consumers of the services provided by The New York City Police Department.

7. At all times hereinafter mentioned Defendant, THE CITY OF NEW YORK, employed POLICE OFFICER MICHAEL DALIA, SHIELD NO. 2310.

8. At all relevant times, the individual defendant was acting pursuant to their authority as a NEW YORK CITY POLICE DEPARTMENT employee. Notwithstanding their unconstitutional and unlawful conduct, the actions of the individual defendant were taken in the course of their duty and were incidental to their otherwise lawful function as an agent, servant and employee of the New York City Police Department.

9. The Plaintiff, SEDINA SIMMONS ("SIMMONS") was, on September 19, 2019, and at all times, a resident of the County of Queens, State of New York residing at 117-26 146th Street, Queens, NY 11436.

CONDITIONS PRECEDENT

10. On or about March 11, 2020, and within ninety (90) days of the occurrence complained of hereinafter, Plaintiff duly served a Notice of claim upon the City of New York in the manner and mode required by law.

11. At least thirty (30) days have elapsed since the service of the claim prior to the Commencement of this action and adjustment of payment thereof has been neglected or refused.

12. On June 17, 2020, the Plaintiff complied with the request of the municipal Defendants for an oral examination pursuant to Section 50-H of the General Municipal Law.

13. That this action has been commenced outside one (1) year and ninety (90) days after the cause of action of the Plaintiff accrued but it is timely due to the COVID-19 pandemic, resultant prohibition against filing new matters, and toll by way of Executive Order of New York Governor Andrew M. Cuomo.

JURISDICTION AND VENUE

14. The Plaintiff brings this action in the Supreme Court, State of New York, County of New York, because the plaintiff has been injured for a sum that exceeds the jurisdiction of all lower courts.

15. The Plaintiff properly designates New York County as the place of trial. The basis of the venue is the locus of the occurrence.

STATEMENT OF FACTS

16. On or about October 23, 2019, at approximately 11:00 a.m., plaintiff was a lawful pedestrian on 124th Street between Lexington Avenue and Park Avenue, New York, NY.

17. At the above specified time and place, without justification or provocation and without a warrant, the defendants, THE CITY OF NEW YORK and POLICE OFFICER MICHAEL DALIA, SHIELD NO. 2310, assaulted, confined, unduly restrained, falsely arrested, and falsely imprisoned plaintiff SIMMONS for an alleged crime claimed to have taken place on September 19, 2019.

18. Defendants, THE CITY OF NEW YORK and POLICE OFFICER MICHAEL DALIA, SHIELD NO. 2310, falsely arrested and falsely imprisoned plaintiff, SIMMONS.

19. Plaintiff SIMMONS was held at the 23rd Precinct for approximately one (1) day and Central Booking for approximately one (1) day.

20. Plaintiff SIMMONS was then released from Central Booking and was forced to make three additional court appearances.

21. Plaintiff was refused medical attention and services to treat her asthma and injured wrists.

22. Plaintiff had to be admitted to the Mt. Sinai Hospital Emergency Room the day of her release to treat her injuries sustained while in police custody.

23. On December 17, 2019, all charges against plaintiff SIMMONS were dismissed as on a motion of the District Attorney pursuant to CPL 160.50.

AS AND FOR A FIRST CAUSE OF ACTION

24. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “23”, inclusive, as though each were set forth at length herein.

25. On October 23, 2019, and thereafter, in the City of New York, State of New York, the Defendants, their agents, servants and/or employees wrongfully arrested, imprisoned, detained, assaulted and battered plaintiff, SIMMONS, without any right or grounds thereof.

26. Defendant, POLICE OFFICER MICHAEL DALIA, SHIELD NO. 2310, injured and maimed the plaintiff SIMMONS such that she was unable to move freely or otherwise leave the scene without apprising her as to why she was being placed under arrest.

27. Plaintiff was detained, arrested, imprisoned, assaulted and battered by the defendants, their agents, servants and/or employees without probable cause and/or justification.

28. Defendants, through their agents, servants and/or employees, acted in bad faith in committing the aforementioned arrest, detention, imprisonment, assault and battery of plaintiff, SIMMONS.

29. Defendants, their agents, servants and/or employees, intended to confine the plaintiff, SIMMONS, in that plaintiff was conscious of the confinement; plaintiff did not consent to the confinement; and that the confinement was not privileged.

30. Defendants deprived and refused plaintiff medical attention for her asthma and injured wrists due to excessive force.

31. At the time of her unlawful arrest, detention and imprisonment, plaintiff, SIMMONS, has not committed or attempted to commit any illegal act or crime.

32. At the time of Plaintiff's unlawful arrest, defendants knew that the aforementioned arrest and detention were false and without probable cause.

33. The said false arrest and false imprisonment cause plaintiff, SIMMONS, to suffer emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to her reputation.

34. Defendants placed plaintiff SIMMONS under arrest and falsely charged her with criminal possession of a weapon.

35. Plaintiff SIMMONS, was in police custody, was unlawfully detained and falsely imprisoned. The unlawful search and seizure was without due process of law and was done to deprive plaintiff of her rights guaranteed by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

36. It is alleged that Defendants THE CITY OF NEW YORK, POLICE OFFICER MICHAEL DALIA, SHIELD NO. 2310, their agents, servants and employees, maliciously and intentionally detained, falsely detained, falsely imprisoned and humiliated plaintiff, SIMMONS, in violation of his constitutional rights.

37. Plaintiff SIMMONS was released from custody on or about October 25, 2019.

38. As a direct result of the above defendants' actions, plaintiff, SIMMONS, suffered and continues to suffer severe mental anguish, humiliation, shame, emotional distress and damage to reputation, some or all of which may be permanent.

39. Plaintiff, SIMMONS, suffered – and continues to suffer – greatly, was and is physically and emotional traumatized by this excessive use of force, detention and imprisonment.

40. The false criminal arrest and wrongful imprisonment of plaintiff, SIMMONS, because of defendant's knowledge of lack of any legitimate cause or justification, were intentional, malicious, reckless, and in bad faith.

41. As a direct and proximate result of defendant's actions, plaintiff, SIMMONS, was deprived of rights, privileges and immunities under the Fourth and Fourteenth Amendments to the United States Constitution and the laws of the City and the State of New York.

42. As a result of the foregoing, plaintiff, SIMMONS, demands judgment against Defendants, THE CITY OF NEW YORK and POLICE OFFICER MICHAEL DALIA, SHIELD NO. 2310, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

43. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "42," inclusive, as though each were set forth fully at length herein.

44. On October 23, 2019, at approximately 11:00 a.m., plaintiff was a lawful pedestrian on 124th Street between Lexington Avenue and Park Avenue New York, NY, in the City and State of New York when she was assaulted and battered by POLICE OFFICER MICHAEL DALIA, SHIELD NO. 2310, employed by defendant, THE CITY OF NEW YORK.

45. On October 23, 2019, defendants commenced a criminal proceeding against plaintiff knowing that plaintiff had not committed any of the alleged criminal acts.

46. On December 17, 2019, the criminal action was terminated in favor of the plaintiff.

47. Defendants lacked probable cause to for the arrest and criminal proceeding, to wit, the defendants did not witness any criminal acts, the defendants did not observe, nor did they have any credible evidence that plaintiff was in possession of a weapon on September 19, 2019.

48. Despite this lack of probable cause, known to defendants immediately and prior to the arrest of plaintiff, defendants still falsely arrested plaintiff and maliciously prosecuted her for crimes she did not commit.

49. Defendants acted with improper motive and actual malice by knowingly arresting and continuing to prosecute plaintiff after observing that she did not commit a crime and stated to her that “she was arrested for being nosy”.

50. Furthermore, defendants continued the malicious prosecution that there was no probable cause for the arrest.

51. As a result of the above mentioned, the plaintiff, SIMMONS, was injured, became sick, sore, lame, and disabled, and belief, will continue to suffer and still suffers severe and permanent injuries, and upon information and belief, will continue to suffer from said injuries.

52. As a result of the foregoing, plaintiff, SIMMONS, demands judgment against Defendants, THE CITY OF NEW YORK and POLICE OFFICER MICHAEL DALIA, SHIELD

NO. 2310, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

53. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “52,” inclusive, as though each were set forth fully at length herein.

54. The actions of defendants heretofore described constitute an unlawful arrest, unlawful detention, false imprisonment, wrongful imprisonment, assault and battery, all in violation of plaintiff, SIMMONS’s civil rights.

55. Defendants deprived plaintiff, SIMMONS, of her liberty in violation of her civil and constitutional rights, as set forth in the United States Constitution, 42 U.S.C. §1983 and the Constitution of the State of New York.

56. Defendants violated the civil and constitutional rights of plaintiff, SIMMONS, as set forth in the United States Constitution, 42 U.S.C. §1983 and the Constitution of the State of New York.

57. Defendants’ actions were undertaken under color of law and would not have existed but for said defendants using their official power.

58. The supervisors and policy making officers of Defendant, THE CITY OF NEW YORK, and its Police Department have, as a matter of policy, failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individual officer engaged in such practices.

59. Defendant, THE CITY OF NEW YORK, and its Police Department, has sanctioned the above-described policy and practices through its deliberate indifference to the effect of said

policy upon the constitutional and civil rights of plaintiff, SIMMONS, and others similarly situated.

60. As a result of the foregoing, plaintiff, SIMMONS, demands judgment against Defendants, THE CITY OF NEW YORK and POLICE OFFICER MICHAEL DALIA, SHIELD NO. 2310, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

61. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “60,” inclusive, as though each were set forth fully at length herein.

62. Defendant, THE CITY OF NEW YORK, hired and retained in its employ police officers, including defendant POLICE OFFICER MICHAEL DALIA, SHIELD NO. 2310, with the knowledge that said police officer lacked the experience to be employed by the aforementioned defendant, and was, therefore, unfit to be a police officer.

63. Defendant, THE CITY OF NEW YORK, hired and retained in its employ police officers, including defendant POLICE OFFICER MICHAEL DALIA, SHIELD NO. 2310, with knowledge that said police officer lacked the deportment to be employed by the aforementioned defendant, and was, therefore, unfit to be a police officer.

64. Defendant, THE CITY OF NEW YORK, hired and retained in its employ police officers, including defendant POLICE OFFICER MICHAEL DALIA, SHIELD NO. 2310, with knowledge that said police officer lacked the experience to be employed by the aforementioned defendant, and therefore, was unfit to be a police officer.

65. Defendant, THE CITY OF NEW YORK, hired and retained in its employ police officers, including Defendants POLICE OFFICER MICHAEL DALIA, SHIELD NO. 2310, with

knowledge that said police officer had vicious propensities and was therefore unfit to be a police officer.

66. As a result of the foregoing, plaintiff SIMMONS, has suffered serious and severe emotional distress, personal injuries and loss to her reputation.

67. As a result of the foregoing, plaintiff SIMMONS, demands judgment against Defendants, THE CITY OF NEW YORK and POLICE OFFICER MICHAEL DALIA, SHIELD NO. 2310, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

68. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “67,” inclusive, as though each were set forth fully at length herein.

69. That the aforementioned occurrences, to wit: the false arrest, detainment, unlawful arrest, unlawful and false imprisonment of plaintiff SIMMONS; the assault and battery committed by defendants against plaintiff SIMMONS; the violation of plaintiff’s civil and constitutional rights; and the resulting injuries to the mind and body therefrom; were caused solely by reason of the negligence of the defendants, their agents, servants and/or employees, without any negligence on the part of the plaintiff SIMMONS.

70. As a result of the foregoing, plaintiff SIMMONS, demands judgment against Defendants, THE CITY OF NEW YORK and POLICE OFFICER MICHAEL DALIA, SHIELD NO. 2310, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION

71. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “70,” inclusive, as though each were set forth fully at length herein.

72. Defendants’ conduct towards Plaintiff, was so outrageous and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

73. Defendants acted with the desire to cause plaintiff SIMMONS, mental distress and physical distress and pain, or acted under circumstances known to them which made it substantially certain that they would cause such mental and physical distress.

74. Defendants acted with utter and reckless disregard of the consequences of their actions.

75. As a result of the foregoing, plaintiff SIMMONS, has sustained severe and debilitating physical, emotional and psychological distress, anguish, anxiety, fear, humiliation, and soreness.

76. As a result of the foregoing, plaintiff SIMMONS, demands judgment against Defendants, THE CITY OF NEW YORK and POLICE OFFICER MICHAEL DALIA, SHIELD NO. 2310, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR AN SEVENTH CAUSE OF ACTION

77. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “76,” inclusive, as though each were set forth fully herein.

78. Upon information and belief, defendant, THE CITY OF NEW YORK, through other police officers who are unknown at this time, by their conduct and under color of state law,

had opportunities to intercede on behalf of plaintiff SIMMONS to prevent the excessive use of force but due to their intentional conduct or deliberate indifference declined or refused to do so.

79. As a direct and proximate result, Plaintiff suffered injuries and damages described above.

80. As a result of the foregoing, plaintiff SIMMONS, demands judgment against Defendants, THE CITY OF NEW YORK and POLICE OFFICER MICHAEL DALIA, SHIELD NO. 2310, in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

THE ITEMS OF DAMAGE OR INJURIES CLAIMED

81. That by reason of the foregoing, plaintiff, SIMMONS, was severely injured and damaged, sustained personal injuries, bruises, trauma, mental distress and other injuries; her civil rights were violated. Plaintiff was rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some injuries which are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience, and other effects of such injuries, and Plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

82. Plaintiff SIMMONS suffered a deprivation of her civil rights and liberty, was falsely arrested, falsely imprisoned, the use of excessive and unnecessary force was used against her; she was assaulted, humiliated, embarrassed, unlawfully detained, suffered emotional harm, shock, loss of reputation in the community, loss of self-esteem, and fear and anxiety as a result of this incident.

83. Plaintiff was deprived of her freedom.

84. As a result of the aforementioned acts, Defendants violated the rights of plaintiff SIMMONS, secured to her under the Eighth Amendment and Fourteenth Amendment of the Constitution of the United States of America, and under 42 U.S.C. §1983.

85. Plaintiff SIMMONS, was caused to be injured, and to undergo pain and suffering as a result of the aforementioned willful, wanton and deliberate indifference on the part of defendants.

86. The above constitutional violations are all actionable under and pursuant to 42 U.S.C. §§1981, 1983, 1985, 1986 and under New York State Law.

87. As a result of the aforesaid, Plaintiff SIMMONS, was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff, SEDINA SIMMONS, respectfully demands judgment against defendants, THE CITY OF NEW YORK and POLICE OFFICER MICHAEL DALIA, SHIELD NO. 2310, and requests the following relief: compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction; an award of reasonable attorney's fees, costs and disbursements of this action; such other and further relief as this Court may deem proper under the circumstances.

Dated: New York, New York
July 28, 2021

FRIEDMAN, LEVY, GOLDFARB & GREEN, P.C.

Attorneys for Plaintiff

250 West 57th Street - Suite 1619

New York, New York 10107

(212) 307-5800

By: 
NICOLAS BAGLEY, ESQ.

ATTORNEY'S VERIFICATION BY AFFIRMATION

NICOLAS BAGLEY, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of FRIEDMAN, LEVY, GOLDFARB & GREEN, P.C., attorneys of record for the plaintiff. I have read the annexed

SUMMONS and VERIFIED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the plaintiff is because plaintiff resides outside of the county wherein your affirmant maintains offices.

Dated: New York, New York
July 28, 2021



NICOLAS BAGLEY, ESQ.